LAND & LEDGERS

HISTORICAL LAW, LAND RIGHTS AND INSTITUTIONS

RESEARCH REFERENCE — STEP 09

Date: 8 October 2026 | **Window:** 1870–1905 | **Status:** Partially verified federal timeline with explicitly held local-law research.

Purpose and constitutional boundary

A single legally unrestricted LandForSale=true, Bank=true, LoanType=true or TownLicense=true flag would falsify the period. Federal, territorial/state, county and municipal law may govern different aspects of the same Business. Treat legal regimes as dated authoring with provenance, not blanket progression unlocks. Physical opportunity, legal authority and actual prosecution/enforcement remain separate causal layers; historically possible unlawful action must not silently transform into consequence-free action.

Hierarchy of evidence

1. **Verified direct statutory record / official government account:** grounds general federal timing or identified legal rights but may not establish local implementation details.
2. **Canon preserved historical finding:** identifies a potentially important legal constraint but does not establish exact full statutory wording unless independently sourced.
3. **Research hold:** exact date, exception, county, legal party, procedure, retroactivity or applicability is unresolved; do not hard-code.

Legal authoring schema

LegalRegimeRule: jurisdiction geography and hierarchy; effective-from/to; linked statute/treaty/charter/decision; affected actor type and instrument; lawful/unlawful/prohibited distinction; prerequisite steps; remedy/enforcement actor; known exceptions; confidence and source; migration/continuity rules for existing claims.

PropertyInterest: parcel/site or movable asset; claimant/holder; full title, lease, right-of-way, easement, entry, trust restriction, mortgage or other real interest; effective date; document/notice/recording evidence; possession/custody; relative priority and extinguishment/transfer procedure.

Main legal findings

LAW-FED-1862-HOMESTEAD — Federal Homestead Act

Effective from: 1862-05-20. **Jurisdiction:** United States, surveyed eligible public land. **Domain:** Land entry/claims.

Status: VERIFIED FEDERAL FRAME. **Evidence:** Federal statute; https://www.archives.gov/milestone-documents/homestead-act.

Historical rule / research finding: Allows eligible claimants to enter surveyed eligible public land and seek patent after residence/improvement/proof; criteria and later amendments must be checked.

Simulation authority: Entry, residence, improvements, proof, patent, transfer restrictions.

Guardrail: Not applicable to reserved/trust land or private parcels solely because empty.

LAW-FED-1863-BANK — National Currency Act

Effective from: 1863-02-25. **Jurisdiction:** United States. **Domain:** Financial charter.

Status: VERIFIED GENERAL CHRONOLOGY. **Evidence:** Federal statute / FDIC chronology; https://www.fdic.gov/history/1850-1899.

Historical rule / research finding: Creates national banking/monetary charter framework with bond-backed note issuance and Comptroller of Currency.

Simulation authority: Private lender versus nationally chartered bank powers; institution eligibility.

Guardrail: Capital thresholds may vary with later amendments and locality; not a generic bank unlock.

LAW-FED-1864-BANK — National Bank Act revision

Effective from: 1864. **Jurisdiction:** United States. **Domain:** Financial charter.

Status: VERIFIED GENERAL CHRONOLOGY. **Evidence:** FDIC chronology; https://www.fdic.gov/history/1850-1899.

Historical rule / research finding: Amends/replaces 1863 national currency framework; national institutions maintain real federal legal constraints.

Simulation authority: Institution type, governance, bank notes, regulatory reporting.

Guardrail: Check exact national-bank powers separately for each implemented service.

LAW-TREATY-1868-LARAMIE — 1868 Treaty of Fort Laramie

Effective from: 1868. **Jurisdiction:** Lakota and other signatory nations; Great Sioux Reservation and related lands. **Domain:** Treaty and sovereign land rights.

Status: VERIFIED BROAD RIGHTS; GIS HOLD. **Evidence:** National Park Service; https://www.nps.gov/places/1868-treaty-field-area.htm.

Historical rule / research finding: Treaty rights and federal obligations constrain entry into Black Hills and other specified lands in 1870 opening world.

Simulation authority: Geographic legal status, treaty and reservation rights; not ordinary sale listing.

Guardrail: Later US actions and dispossession are historically contested and must be represented with period and rights provenance.

LAW-FED-1878-BANKRUPTCY — Federal bankruptcy repeal and gap

Effective from: 1878. **Jurisdiction:** United States. **Domain:** Insolvency legal regime.

Status: VERIFIED FEDERAL TIMELINE. **Evidence:** Federal Judicial Center / US Courts; https://www.rib.uscourts.gov/sites/default/files/FJC%20Bankruptcy%20Timeline.pdf.

Historical rule / research finding: Repeal 1867 act; federal bankruptcy absent until 1898 legislation, while state/territorial processes remain.

Simulation authority: Federal proceeding availability separate from foreclosure/assignment.

Guardrail: No modern bankruptcy reset; creditors remain capable of ordinary remedies.

LAW-FED-1887-DAWES — General Allotment (Dawes) Act

Effective from: 1887-02-08. **Jurisdiction:** Federal Indian policy, applicability varies by tribe and specific legal regime. **Domain:** Indigenous trust land and allotment.

Status: VERIFIED NATIONAL STATUTE; LOCAL APPLICATION HOLD. **Evidence:** Federal statute; https://www.archives.gov/milestone-documents/dawes-act.

Historical rule / research finding: Federal allotment legislation includes trust restrictions; applicability and geography must be verified, not applied universally to all communities.

Simulation authority: Allotment, federal trust, restrictions on conveyance, heirs.

Guardrail: No automatic assumption that 1887 opens reservation property for settler purchase.

LAW-SD-1889-STATE — Statehood changes territorial/state jurisdiction

Effective from: 1889-11-02. **Jurisdiction:** South Dakota and North Dakota. **Domain:** Jurisdiction/institution change.

Status: VERIFIED DATE; DETAILED TRANSITION HOLD. **Evidence:** US Senate chronology; https://www.senate.gov/states/SD/timeline.shtml.

Historical rule / research finding: South Dakota became state on November 2, 1889; preexisting obligations and individual land rights do not vanish.

Simulation authority: Law table scope, authority, political and public institution changes.

Guardrail: Historical event toggle OFF must not suppress statehood in normal-history scenarios.

LAW-FED-1898-BANKRUPTCY — Bankruptcy Act of 1898

Effective from: 1898-07-01. **Jurisdiction:** United States. **Domain:** Insolvency legal regime.

Status: VERIFIED GENERAL CHRONOLOGY. **Evidence:** Federal Judicial Center; https://www.rib.uscourts.gov/sites/default/files/FJC%20Bankruptcy%20Timeline.pdf.

Historical rule / research finding: Creates long-term federal insolvency system, with referees and trustee procedure; not modern chapter model.

Simulation authority: Federal bankruptcy eligibility, filing and debt procedures.

Guardrail: Corporate and individual eligibility differs, do not invent 1978 legal paths.

LAW-FED-1902-RECLAMATION — Reclamation Act

Effective from: 1902-06-17. **Jurisdiction:** Western states and territories with eligible projects. **Domain:** Federal land/water institutions.

Status: VERIFIED ENACTMENT; LOCAL PROJECT HOLD. **Evidence:** Bureau of Reclamation; https://www.usbr.gov/history/borhist.html.

Historical rule / research finding: Establishes federal support for reclamation works; actual project rights, construction, repayment and water service require separate records.

Simulation authority: Water, right-of-way, public capital, project agreements.

Guardrail: Act does not automatically change a parcel water supply or value.

LEGAL-LOCAL-INTEREST — Dakota loan interest and Black Hills exceptions

Effective from: 1870-1905. **Jurisdiction:** Dakota territorial and South Dakota locales. **Domain:** Usury/lending terms.

Status: RESEARCH HOLD. **Evidence:** Canon XXXI research summary only; Canon XXXI PDF pp.92–93.

Historical rule / research finding: Canon includes 7% default/legal reference and written contract ceiling, with Black Hills exceptions 1881–1887.

Simulation authority: LegalRegime rule with county/date/loan instrument and exact statutory source.

Guardrail: Do not implement numerical 7%/12% or exception as global fact without direct statute confirmation.

LEGAL-LOCAL-MUNICIPAL — Municipal debt/credit caps and amendments

Effective from: 1886-1905. **Jurisdiction:** Dakota Territory then South Dakota. **Domain:** Public finance.

Status: RESEARCH HOLD. **Evidence:** Canon XXXI research summary only; Canon XXXI PDF pp.92–93.

Historical rule / research finding: Canon refers to territorial cap from 1886 and changed statehood constitutional cap; exact application/exemptions still need legal source.

Simulation authority: Municipal issuer, borrowing power, security, elections/authorization.

Guardrail: No universal public borrowing percentage until text and effective limits verified.

LEGAL-LOCAL-CHATTEL — Chattel mortgage and secured movable property

Effective from: 1870-1905. **Jurisdiction:** County/territorial or state jurisdiction. **Domain:** Secured finance.

Status: RESEARCH HOLD. **Evidence:** Canon XXXI source summary only; Canon XXXI PDF pp.29–30.

Historical rule / research finding: Movable assets can be encumbered with instruments that carry different notices, creditor priorities and enforcement.

Simulation authority: Collateral-specific registry, liens, document transfer and sale.

Guardrail: Do not infer a universal repo button from collateral flag.

LEGAL-LOCAL-TAX — Tax sale and redemption

Effective from: 1870-1905. **Jurisdiction:** Territorial/state/county jurisdiction. **Domain:** Property tax enforcement.

Status: RESEARCH HOLD. **Evidence:** Canon XXXI historical overview only; Canon XXXI PDF pp.30–33.

Historical rule / research finding: Tax delinquency can create sale and redemption rights distinct from uncontested title.

Simulation authority: Assessment, notice, tax claim, redemption, sheriff/collector agency.

Guardrail: Research notice, deadlines, appeals, exemptions by jurisdiction.

LEGAL-LOCAL-LIQUOR — Local liquor licensing, gambling and vice

Effective from: 1870-1905. **Jurisdiction:** Territorial/state/county/city. **Domain:** Local licensing and enforcement.

Status: RESEARCH HOLD. **Evidence:** Canon XXXI gameplay doctrine only; Canon XXXI PDF pp.242–247; 321–325.

Historical rule / research finding: Alcohol, gambling and concession arrangements may be legal, restricted or unlawful by date and place; intentional violations are physical possibility with consequences.

Simulation authority: Licensing, landlord exposure, independent concessions, inspection/enforcement.

Guardrail: Do not replace actual law with a universal morality meter or assume laws identical everywhere.

LEGAL-RIGHT-WATER — Water access and usage

Effective from: 1870-1905. **Jurisdiction:** Geography and jurisdiction dependent. **Domain:** Water/land rights.

Status: RESEARCH HOLD. **Evidence:** Canon XXXI historical design plus US Reclamation; Canon XXXI PDF pp.26–35; https://www.usbr.gov/history/borhist.html.

Historical rule / research finding: Physical water and legal water-use access distinct; claims may coexist with rival interests.

Simulation authority: Rights-of-way, water diversion, wells, riparian/appropriative rules where applicable.

Guardrail: Do not infer automatic water ownership from parcel title.

LEGAL-LOCAL-LAND — Railroad grants, townsites and federal public-domain conveyance

Effective from: 1870-1905. **Jurisdiction:** Route, land office and individual title dependent. **Domain:** Land titles and obligations.

Status: RESEARCH HOLD. **Evidence:** Canon XXXI historical research summary; Canon XXXI PDF pp.23–27.

Historical rule / research finding: Different interests such as railroad title, options, public entry, fee ownership, leases and rights-of-way matter.

Simulation authority: Property interest, survey, chain of title, counterparty and adjudication.

Guardrail: Do not treat an empty-looking parcel as unowned land.

Acceptance tests

- Filed homestead and patented fee-simple land may have different transfer/collateral powers; unentered reserve/treaty land must not appear in general land offers.
- A Black Hills parcel's treaty status must be resolved from region/date/rights, not a `West=true` boolean.
- 1889 statehood changes the applicable legal rule set while existing debts, titles and continuing economic entities persist.
- National bank regulatory limits must not be inherited by a private individual lender simply because both loan money.
- 1898 bankruptcy availability does not create a modern Chapter 11 or cancel existing collateral.
- State/territorial finance rules may differ from federal bankruptcy and corporation powers, with conflicting cases surfaced for research.
- The original historical event toggle must not suppress legal dates or Indigenous rights.

Pending research strategy

Prioritize original Dakota territorial statutes, South Dakota codifications, county deed/claim records, contemporary state supreme-court decisions, the 1889 enabling/constitution changes and tribal/treaty source repositories. For Indigenous land-right questions, preserve nation/community identification, geographic scope, treaty text, later federal acts and the distinction between legality under US law and Indigenous sovereignty; do not collapse into a single unqualified government-owner field.

No unverified local percentage cap, usury ceiling or licensing date in this reference is a final simulation constant.